



DECISION

Complaint No. : POS/5537/KE/308/2022

Name and Address of the Complainant : Mr. Allah Warayo Bashir, R/o. New Allah Bux Himati Goth, House No. H-260, Shah Town Road, Pipri, Bin Qasim, District Malir, Karachi.

Name of the Agency Complained against : Revenue

Name & Designation of Investigation Officer : Syed Farrukh Hahib
Director, Regional Office, Karachi (East)

Subject :- **ALLEGED DELAY IN FOTIKHATA BADAL OF LAND LEFT BY DECEASED PATERNAL GRANDMOTHER & MOTHER OF THE COMPLAINANT DESPITE APPLICATIONS TO MUKHTIARKAR SUJAWAL JUNEJO, DISTRICT KAMBAR SHAHDADKOT.**

THE COMPLAINT

Mr. Allah Warayo Bashir filed a complaint dated 30.09.2022, alleging that the Revenue Department, particularly the office of Mukhtiarkar Sujawal Junejo, District Kambar Shahdadkot, failed to process the Foti-Khata Badal of land inherited by complainant from his deceased grandmother and mother. He stated that despite submitting multiple applications, no action was taken. He therefore sought the intervention of this Office for redressal of his grievance.

PROCEEDINGS

2. After admitting the complaint under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991, (amended up to date), and receiving mandatory Affidavit on Form "A" and other relevant documents, The complaint was referred to the Deputy Commissioner, District Kambar-Shahdadkot, for comments vide letter dated 04.11.2022. Reminders were issued on 16.12.2022, 25.01.2023, and 04.05.2023, but no comments were received. Where after hearing was fixed on 31.08.2023.

3. At the hearing, Mr. Abdul Wahid, Mukhtiarkar, appeared and submitted his report dated 30.08.2023, signed both by the Assistant Commissioner and Mukhtiarkar Sijawal Junejo, explaining that the 0-8½ share which was originally recorded in the name of Mst. Duran, grandmother of the complainant; 0-67 paisa share stood in the names of her step-sons, including Ali Hassan; Thereafter a litigation ensued (F.C. Suit No. 188/1983) before 1st Senior Civil Judge, Larkano challenging Mst. Duran's share; However both parties compromised, and the matter was decreed on 10.02.1987. As per records, the complainant's family sold their share for Rs. 20,000/- in 1987, leaving no ownership claim. The Mukhtiarkar further informed that complainant had also filed similar complaint before the Board of Revenue, which after conducting an enquiry rejected the complaint.

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4. The complainant, Mr. Allah Warayo Bashir, was called to explain such concealment of material facts regarding the compromise and sale but he failed to appear despite opportunities provided.

FINDING

5. I have examined the case file and perused correspondence and reports, etc., and observed that documentary evidence, including the decree in F.C. Suit No. 188/1983, establishes that the matter was amicably settled through compromise between the parties, and the complainant's family sold their share in 1987 for Rs. 20,000/-, leaving no surviving ownership rights. The complainant, Mr. Allah Warayo Bashir, concealed these material facts while filing the complaint, amounting to misrepresentation. No act of maladministration is established against the Revenue Department or its officers, as the requested Foti-Khata Badal is legally untenable after compromise and sale.

DECISION

6. In view of above, the complaint is hereby rejected and file consigned to record.

Given under my hand and seal of the office



Sd /-
(Muhammad Sohail Rajput)
Sitara-e-Imtiaz. PAS
Ombudsman Sindh

Karachi, dated 16.11.02, 2026